

However, a customs officer may request additional information at any stage of the refund process. Additional documents can be submitted in AIS by linking them to the MRN of the original declaration.

All documents will be retained in AIS.

10.11 Request for additional information

After acceptance of the refund application, the customs officer may request additional information. The time limit for the applicant to provide this additional information is 30 days from the date the applicant received this request. If additional information is not provided within the prescribed time limit, the customs officer can refuse the application. The applicant is entitled to a Right to be Heard letter in this situation.

10.12 Presentation of Goods

Repayment or remission of customs duties is subject to the presentation of goods

Where the goods cannot be presented, the customs authority may grant the repayment or the remission only where there is evidence showing that the goods in question are the goods in respect of which the repayment or remission has been requested. (Article 173 UCC IA).

An example of acceptable evidence is documentary proof that the original goods have been returned to the seller.

10.12.1 Where the decision is to grant repayment or remission

Following the applicant exercising the Right to be Heard, the customs officer must communicate the grounds for refusal to the applicant. The decision to refuse must be given in writing and must clearly outline the reasons for the refusal.

The applicant must also be informed of their right of appeal. [Details of the appeal procedure](#) is set out on the Revenue website.

10.12.2 Right to be Heard

Before taking a decision which would adversely affect the applicant, the customs officer must communicate to the applicant in writing the grounds on which s/he intends to base their decision.

The applicant will be given the opportunity to express their point of view, within 30 days. Further information is available in the Tax and Duty Manual [Right to be Heard](#).

AIS must be updated to record that this procedure was followed correctly. The Right to be Heard letter together with the applicant's response must be uploaded to AIS.

All relevant documents can be uploaded by linking them to the MRN of the amended/invalidated declaration.